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Substitute Bill Comparative Synopsis

Sub. S.B. 174

136th General Assembly

House Judiciary

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This table summarizes how I_136_0493-6 differs from the As Passed by the Senate version of S.B. 174. It addresses only the topics on which the two versions differ substantively. It does not list topics on which the two versions are substantively the same.

Topic	Previous Version (As Passed by the Senate)	Latest Version (I_136_0493-6)
Terminology	Refers to the allocation of "parenting responsibilities" throughout the bill in newly enacted sections (R.C. 3109.04, with references throughout the bill).	Changes "parenting responsibilities" to "parental rights and parenting responsibilities" throughout the bill (R.C. 3109.04, with conforming changes).
Parenting plans	Requires a parenting plan to seek to do all of the following when it is in the best interest of the child: ▪ Ensure that parents or legal custodians share in the responsibilities of raising a child;	Requires a parenting plan to do the same unless it is not in the best interest of the child (R.C. 3109.044).

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	▪ Enable a child to enjoy a meaningful relationship with both parents or legal custodians; ▪ Maximize parenting time with each parent. (R.C. 3109.044.)	
	Requires a parenting plan to include, among other provisions, the frequency, time, and method of the child's communication with a parent or legal custodian during the parenting time (R.C. 3109.044(D)).	Similar, but requires the parenting plan to include the times and method of the child's communication with a parent or legal custodian (R.C. 3109.044(D)).
	No provision.	Requires a court to give special weight to a joint parenting plan filed by the parents or legal custodians (R.C. 3109.046(A)).
	Requires the court to approve a joint parenting plan if the court finds that its provisions are in the best interest of the child (R.C. 3109.046).	Requires the court to approve a joint parenting plan unless it finds that the plan is not in the best interest of the child (R.C. 3109.046(B)).
	No provision.	Requires, when the parents or legal custodians file one or more separate parenting plans, the court to give special weight to provisions of one or more of the separate parenting plans where the parents or legal custodians agree (R.C. 3109.047(A)).

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	Allows a court to object to a parent's or legal custodian's parenting plan, whether jointly or separately filed, when it is not in the best interest of the child (R.C. 3109.046 and 3109.047).	Adds the following as reasons that a court may object to a jointly or separately filed parenting plan, in addition to when the plan is not in the child's best interest: ▪ When the plan is incomplete; ▪ When the plan is in violation of the law. (R.C. 3109.046(C) and 3109.047(B).)
	Requires, if there is more than one separate parenting plan and the court approves one of them, the court to provide written findings of fact to support its objection to another parenting plan (R.C. 3109.047).	Requires, if the court objects to one or more of the separate parenting plans, the court to provide written findings of fact to support its objection (R.C. 3109.047(B)).
	Requires the court to do both of the following if the court does not approve a jointly filed parenting plan or any separately filed parenting plan: ▪ Provide written findings of fact to support its finding; ▪ Either allow the parents or legal custodians to make appropriate changes to resolve the court's objections or issue its own parenting plan. (R.C. 3109.046 and 3109.047.)	Also requires a court to allow the parents or legal custodians to make appropriate changes but specifies that the court must provide written findings of fact to support its findings and issue a modified parenting plan if the parents or legal custodians fail to make appropriate changes to the parenting plan within 14 days (R.C. 3109.046(C) and 3109.047(C)).

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	No provision.	Requires, when issuing a modified parenting plan, the court to incorporate all terms of the joint parenting plan or agreed upon terms of any separate parenting plan filed by the parents or legal custodians that are not incomplete, in violation of the law, or contrary to the best interest of the child (R.C. 3109.046(C) and 3109.047(C)).
	Allows a court to deny a request for substantially equal parenting time in a jointly or separately filed parenting plan if the court determines, among other reasons, that it endangers the safety of the parties (R.C. 3109.046 and 3109.047).	Allows a court to deny a request for substantially equal parenting time in a jointly or separately filed parenting plan if the court determines, among other reasons, that it endangers the safety of a party (R.C. 3109.046(D) and 3109.047(D)).
	Requires a court to issue its own parenting plan if no parent or legal custodian files one (R.C. 3109.048).	Requires a court to issue a parenting plan if no parent or legal custodian files one (R.C. 3109.048).
	Grants the court complete discretion over the approval of a parenting plan (R.C. 3109.0412).	No provision.
	Prohibits a court from modifying a prior parenting plan when the modification has been agreed to by all parties without finding that the modification is in the child's best interest (R.C. 3109.0418(C)).	Requires the court to modify a prior parenting plan in this circumstance unless it finds that the modification is not in the child's best interest (R.C. 3109.0418(C)).

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Presence of a guardian ad litem when interviewing a child	Allows the court to have a child's guardian ad litem present when interviewing a child regarding the child's wishes and concerns with respect to the allocation of parenting responsibilities, unless for good cause shown (R.C. 3109.0449(B) and 3109.0445).	Similar, but requires the court to have the guardian ad litem present, if one has been appointed, when interviewing the child (R.C. 3109.0449(B) and 3109.0445).
Child support	Requires, if neither parent of a child who is the subject of a child support order is the designated parent and legal custodian of allocated parenting responsibilities for the child and the child resides with a caretaker who is the legal custodian of the child, the court to issue a child support order requiring each parent to pay that parent's child support obligation pursuant to the order (R.C. 3119.071(C)).	Similar, but removes the following: ▪ The specification that the caretaker be the child's legal custodian; and ▪ The requirement that the court issue a child support order for the parent to pay the parent's child support obligation to the caretaker, and instead specifies that each parent must pay that parent's child support obligation. (R.C. 3119.071(C).).
Definitions	Defines "parent education" as education for parents and legal custodians living apart or terminating their relationship to learn information and skills to minimize potential negative effects on children, promote positive adjustment during the process, and teach parents and legal custodians how to parent cooperatively (R.C. 3109.04(A)(18)). Defines "guardian ad litem" as a person appointed to assist a court in its	Changes the term to "co-parent education" but maintains the same definition (R.C. 3109.046(A)(5), with conforming changes). Similar, but adds that the person also meets the qualifications adopted by the Supreme

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	determination of the best interest of a child (R.C. 3109.04(A)(9)).	Court of Ohio and by a court of common pleas pursuant to the Rules of Superintendence for the Courts of Ohio (R.C. 3109.04(A)(9)).
Waiver of parent education	Allows the court to waive a requirement to order parent education for good cause shown (R.C. 3109.0434).	Similar, but adds undue burden as another basis for a waiver (R.C. 3109.0434).
Restrictions related to abuse or domestic violence	Allows the court to approve or order a restriction of parenting responsibilities if the court finds, based upon a preponderance of the evidence, that such restrictions are reasonably calculated to protect a child from physical, sexual, or emotional abuse, or a parent from domestic violence (R.C. 3109.0455).	Similar, but adds that the court must consider the least restrictive means in approving or ordering a restriction (R.C. 3109.0455).
Best interest of the child	Requires the best interest of the child to be paramount when the issue of parental rights and parenting responsibilities is brought before a court (R.C. 3109.03).	Similar, but requires the best interest of the child to be of utmost importance (R.C. 3109.03).
	Requires a court to consider the best interest of the child to be paramount when allocating parental rights and parenting responsibilities when a child is born to an unmarried female and another person is the designated parent and legal custodian (R.C. 3109.0425).	Similar, but requires the best interest of the child to be of utmost importance (R.C. 3109.0425).

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Interference with parenting time or companionship or visitation	Grants the court discretion to issue an order for compensatory parenting time or companionship or visitation, among other remedies, upon finding that there has been unreasonable interference with parenting time or companionship or visitation (R.C. 3109.0493). No provision.	Requires the court to issue an order for compensatory parenting time upon finding that there has been unreasonable interference with parenting time, while maintaining the court's discretion to grant other remedies for unreasonable interference with parenting time or companionship or visitation (R.C. 3109.0493). Requires that the mandatory issuance of compensatory parenting time and the discretionary grant of other remedies must be in the best interest of the child (R.C. 3109.0493).
Review of court rules	Requests, on behalf of the General Assembly, that each court with jurisdiction over domestic relations matters review and update the court's local rules regarding parenting time to comply with the bill (Section 4).	Similar, but makes the request upon each domestic relations and juvenile court with jurisdiction over parenting matters (Section 4).

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